

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Technologies, Inc. (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Stipulation of Class Action and PAGA Settlement and Release and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 1, paragraph 1.8 of the Stipulation of Class Action and PAGA Settlement and Release. The court preliminarily approves the Stipulation of Class Action and PAGA Settlement and Release and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on April 22, 2026.

The final approval hearing is set for **Thursday, October 15, 2026, at 8:30 a.m. in Department 3.**

9. S-CV-0053818 PUGLIESE, JEREMY v. MORENO, FRANQUI

Defendant Franqui Antoinette Moreno's Demurrer to Plaintiffs' First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Motion

Defendant demurs to plaintiffs' first amended complaint ("FAC") on the grounds res judicata bars the complaint. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes,*

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Inc. v. Liebert (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Res judicata, also known as claim preclusion, applies “when a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.” (*Grande v. Eisenhower Medical Center* (2022) 13 Cal.5th 313, 323.) Determining whether the same causes of action are alleged in both suits requires the court to examine the “primary right at stake: if two actions involve the same injury to the plaintiff and the same wrong by the defendant then the same primary right is at stake even if in the second suit the plaintiff pleads different theories of recovery, seeks different forms of relief and/or adds new facts supporting recovery.” (*Cal Sierra Development, Inc. v. George Reed, Inc.* (2017) 14 Cal.App.5th 663, 675.) A voluntary dismissal with prejudice, otherwise known as a retraxit, is deemed a final judgment on the merits against that plaintiff. (*Alpha Mechanical, Heating & Air Conditioning, Inc. v. Travelers Casualty & Surety Co. of America* (2005) 133 Cal.App.4th 1319, 1330.)

Plaintiffs Jeremy Pugliese and Michele Pugliese’s first amended complaint against Franqui Antoinette Moreno alleges causes of action for motor vehicle and loss of consortium. Plaintiffs also filed a complaint against Franqui Antoinette Moreno in the United States District Court, Eastern District of California that alleges causes of action for motor vehicle and loss of consortium based on the same transaction and occurrences. Plaintiffs then voluntarily dismissed their federal complaint against defendant with prejudice 10 days before filing the pending action.

Here, when taking the factual allegations in the FAC as true, plaintiffs do not allege facts sufficient to state either cause of action because res judicata applies to bar this second suit involving the same causes of action, between the same parties, after a final judgment on the merits in the first action.

Accordingly, defendant’s demurrer is sustained in its entirety without leave to amend.

10. S-CV-0053902 ALVAREZ, LETICIA v. PRECISION FLUID CONTROLS

Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement

Plaintiff’s motion for preliminary approval is continued to **May 28, 2026, at 8:30 a.m. in Department 3**. Plaintiff, or their counsel of record, shall file a supplemental